

The complaint

Mr C complains that his home insurer, Royal & Sun Alliance Insurance Limited (RSA) handled his claim unfairly and provided poor quality and rude customer service.

What happened

Mr C discovered a leak from his roof into his house. He contacted RSA about roof damage on 13 December 2021 and again on 17 December for assistance under his home emergency cover. Mr C was unhappy that he had to wait until 19 December for its roofers to attend as there was water coming into his house.

RSA told Mr C that the roofers found the air vent tile on his roof to be in poor condition and needing replacement and that the roof is covered in moss causing water to flow back through the air vent. RSA declined Mr C's claim under the home emergency cover. Mr C complained about this and the lack of a temporary repair and said the roofer, and subsequently a call handler was rude to him.

Mr C claimed for the roof damage under his building insurance and RSA sent a surveyor to inspect on 22 December 2021. The surveyor reported and RSA declined the claim as there was no storm-related damage and no storm at the time. The surveyor said some flashing had come away at the front of the house with loose areas at the back of the roof. He said the damage was due to wear and tear over time and the repairs were a maintenance issue.

Mr C said RSA unfairly declined his claim and its staff acted unprofessionally, which upset him. He said the surveyor offered different advice than the roofers and he had no confidence in him. He said RSA's letters were dated a long time before delivery and weren't signed.

RSA said there was no peril under the policy that would cover the damage and it wasn't due to a one-off event required for a claim to succeed. It said Mr C didn't hold accidental damage cover and the policy excludes damage from anything that happens gradually. RSA said its agents hadn't been rude to Mr C, but offered £25 for any distress or inconvenience caused.

Our investigator didn't recommend the complaint be upheld. She said RSA had applied the terms of the policy correctly to Mr C's claim and hadn't caused unavoidable delays or been rude to him. The investigator recommended Mr C obtain an expert report about the cause of damage to his roof. Mr C said he wouldn't do so.

Mr C disagreed with the investigator saying many of his complaint points hadn't been addressed. These appear to concern the mis-selling of the policy by another business due to lack of accidental damage cover and customer service issues such as being left hanging on the phone and not calling him back. This complaint will be considered separately against the relevant business.

What I've decided – and why

I've considered all the available evidence and arguments to decide what's fair and

reasonable in the circumstances of this complaint.

I've looked carefully at RSA's decisions and handling of Mr C's claim to see if it has acted in accordance with the terms of the policy and to see if it has treated him fairly.

I've considered the issues raised by Mr C about his home emergency cover first. Mr C wanted a diagnosis and temporary repair of the damage to his roof. His home emergency cover provided a roof inspection which informed him that general deterioration through moss and a failing air vent tile were the causes of the water penetration. The cover costs Mr C about £21 per year and has limitations and exclusions. However, the policy states that the insurer will make a temporary repair where possible to resolve an emergency situation.

The report from RSA's appointed roofer states that the air vent tile was in poor condition on the roof and required a replacement. I can understand Mr C's upset that a temporary fix wasn't attempted, but because this was deemed a permanent repair RSA declined the claim. Mr C's policy excludes cover for '*normal day-to-day household maintenance*' and for anything happening gradually such as wear and tear. I think RSA's decision was based on a fair assessment of the damage to the air vent and the need for it to be replaced, and is supported by the roofer's report and photos. I think RSA acted fairly in declining the claim and that its decision was in line with the policy terms and conditions.

Mr C made a storm damage claim on his buildings insurance policy to see if his roof leak could be repaired under his policy. It's worth noting that building insurance policies cover policyholders for specific risks that are set out and defined within the policy. These are known as perils and typically include storm, fire and escape of water. For a claim to succeed a policyholder has to show that the damage or loss claimed falls within one of these perils. If the damage doesn't fall within a peril, it's often because the damage is due to wear and tear or a gradually operating cause. In common with all building insurance policies these causes are excluded by Mr C's policy and in this way, insurers distinguish between insurance for one-off perils and a maintenance contract.

Mr C's claim was assessed by RSA and its surveyor under the storm peril, as the peril nearest and most likely to be relevant to roof damage. However, Mr C hasn't said this was storm damage and neither RSA nor ourselves have found evidence of a storm at the relevant time. RSA's surveyor inspected the damage and thought it due to general wear and tear, which is excluded by the policy. Mr C declined to obtain his own expert report and in the absence of any other professional opinion about his roof claim I have to be guided by the available expert information. I think Mr C's claim has been declined fairly by RSA and in accordance with the terms of the policy.

Mr C's claim couldn't be considered under accidental damage peril as he didn't hold this cover as part of his policy.

I've looked at RSA's handling and responses to Mr C's concerns. The roof inspection could ideally have been sooner, but a shortage of roofers was explained to Mr C and I don't think given the time of year the delay was unreasonable. I have listened to calls with Mr C but haven't found anywhere RSA's staff or agents were rude to him. I haven't considered the customer service Mr C received from the business that sold and administered his policy.

Mr C thought the roofer was rude and I can understand there would have been some tension during the visit when Mr C discovered there would be no temporary repair, but I haven't anything to show the roofer was rude to him. RSA said it didn't receive Mr C's letter of 30 January 2022 and I haven't seen any reference to this within its business records.

I was sorry to learn about the difficulties Mr C faced in dealing with his roof problem and that he was hurt and shocked by the customer experience he received. At the risk of causing him further distress, I haven't found that his customer experience was different from what we would generally expect in similar circumstances from an insurer. RSA has agreed to pay Mr C £25 for his inconvenience and I think this is fair.

My final decision

For the reasons I have given above it is my final decision that the complaint is not upheld.

Under the rules of the Financial Ombudsman Service, I'm required to ask Mr C to accept or reject my decision before 9 December 2022.

Andrew Fraser
Ombudsman